

Department of Natural Resources

Colorado Parks and Wildlife

CHAPTER W-7 – HERPETOFAUNA

2 CCR 406-7

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

ARTICLE I – General Provisions

#700 Definitions

As used in this Chapter:

- A. “Approved facility” means a licensed animal shelter or pet animal rescue as defined in section 35-80-102, C.R.S.
- B. “Herpetofauna” means reptile or amphibian.
- C. “Progeny” means offspring or descendant.
- D. “Propagate” means to cause the production of offspring in captivity.
- E. “Rehome” means to transfer herpetofauna to another person without monetary or other compensation, except that an approved facility may collect a reasonable rehoming fee.
- F. “Resident” has the meaning codified in section 33-1-102, C.R.S.
- G. “Tropical and subtropical region” means the region between 26.0 degrees north latitude and 26.0 degrees south latitude.

#701 Prohibition

- A. Except as provided in this chapter, Chapter W-1 (governing fishing), Chapter W-3 (governing small game), Chapter W-10 (governing nongame, threatened, and endangered wildlife), Chapter W-11 (governing wildlife parks), Chapter W-13 (governing scientific collection), Chapter W-14 (governing wildlife rehabilitation), title 33, C.R.S. and federal law, it is unlawful for any person to take, possess, sell, offer for sale, purchase, import, export, transport, or release any live herpetofauna in Colorado.
- B. This prohibition does not apply to:

1. the Cheyenne Mountain Zoological Society, Denver Zoological Foundation, Landry's Downtown Aquarium, or Pueblo Zoological Society; or
2. Division employees acting within the scope of their employment.

ARTICLE II – Exceptions

#702 Importation and Exportation

- A. A person may import a species listed in **Appendix A** or **Appendix B** as authorized by a valid importation license and provided a valid health certificate accompanies the shipment. The importation license and health certificate requirements may be satisfied by a valid Certificate of Veterinary Inspection with an entry permit number from the Colorado Department of Agriculture.
- B. A person may export a species listed in **Appendix A, Appendix B, or #707** in accordance with federal, state, and foreign law.

#703 Possession, Sale, Purchase, and Transportation

- A. A person may possess, propagate, sell, offer for sale, purchase, or transport a species listed in **Appendix A** without a license or documentation.
- B. A person may possess, propagate, sell, offer for sale, purchase, or transport a species listed in **Appendix B** only if the person has documentation in the form of a receipt or bill of sale, a donation certificate, a Certificate of Veterinary Inspection used for importation, or documentation that the animal was propagated from lawfully possessed parents, that reasonably identifies the animal possessed, sold, offered for sale, purchased, or transported.
- C. A person who possesses a species listed in **Appendix B** on May 1, 2026, may satisfy the documentation requirement in subsection B of this rule by completing a CPW Legacy Report on a form provided by the Division.

#704 Take, Possession, and Transportation of Native Herpetofauna

- A. A natural person may take from the wild, possess, and transport within Colorado, but not propagate, a species listed in **Appendix C** only as authorized by a valid Resident Herpetofauna Collection and Possession License.
- B. Resident Herpetofauna Collection and Possession License
 1. The Division may issue a Resident Herpetofauna Collection and Possession License that authorizes a Colorado resident to capture from the wild in Colorado, possess, and transport within Colorado any species listed in **Appendix C**.

2. Application Requirements
 - a. The applicant must be a Colorado resident.
 - b. The applicant must complete a herpetofauna education course provided by the Division with a score of 75% or higher within the twelve months prior to submitting the application.
 - c. The applicant must apply online on a form provided by the Division.
 - d. The application must include payment in the amount listed in Chapter W-0 in Appendix F. Applicants under the age of 16 shall be fee-exempt.
3. An application may be denied for the following reasons:
 - a. the application requirements in regulation #704.B.2 of this rule are not satisfied;
 - b. the application is incomplete;
 - c. the applicant violated any provision of a prior Resident Herpetofauna Collection and Possession License;
 - d. the applicant has been convicted of violating any provision of part 2 of article 9 of title 18, C.R.S. (cruelty to animals);
 - e. the Division finds denial necessary to avoid substantial danger to public health and safety; or
 - f. the Division finds denial necessary to further the purposes of articles 1 to 6 of title 33, C.R.S.
4. If an application is denied, the Division will notify the applicant in writing and state the reasons for denial.
5. License Conditions
 - a. A Resident Herpetofauna Collection and Possession License shall include the following conditions:
 - i. the license is valid only when the license holder is a Colorado resident;
 - ii. the license is valid for no more than three years and will expire on March 31 of the expiration year;

- iii. the license holder may take a combined total of four individuals from all species listed in **Appendix C** in any license year;
 - iv. the license holder may take species listed in Appendix C only by hand, dip net, handheld loop, snake hook, or snake tong;
 - v. the license holder must satisfy the reporting and recordkeeping requirements in subsection 9 of this rule;
 - vi. at any one time, the license holder may possess a combined maximum of 12 individuals from **Appendix C** or regulation #704.B.7 (governing legacy possession), including any progeny resulting from breeding that occurred in the wild prior to collection;
 - vii. the license holder must follow generally accepted husbandry practices for any animal possessed under the license, including:
 - (1) ensuring the animal receives appropriate veterinary care;
 - (2) housing the animal in a safe, secure, and appropriately sized enclosure;
 - (3) providing an appropriate temperature, thermal gradient, and humidity level for the animal; and
 - (4) ensuring the animal receives adequate food and water;
 - viii. and the license holder may dispose of a species listed in **Appendix C** only as provided in subsection 8 of this rule.
 - b. A Resident Herpetofauna Collection and Possession License may include any additional condition the Division finds will further the purposes of articles 1 to 6 of title 33, C.R.S., or finds necessary to ensure the welfare of animals possessed under the license.
6. License Suspension or Revocation
- a. The Division may suspend or revoke a Resident Herpetofauna Collection and Possession License for the following reasons:
 - i. the license holder submitted an application with false information;

- ii. the license holder violated any provision of the license;
 - iii. the license holder was convicted of violating any provision of articles 1 to 6 of title 33, C.R.S., after the license was issued;
 - iv. the license holder was convicted of violating any provision of part 2 of article 9 of title 18, C.R.S. (cruelty to animals), after the license was issued;
 - v. the Division finds suspension or revocation reasonably necessary to avoid substantial danger to public health, safety, or welfare;
 - vi. the Division finds suspension or revocation reasonably necessary to further the purposes of articles 1 to 6 of title 33, C.R.S.; or
 - vii. the Division finds the license holder has been guilty of a deliberate and willful violation.
- b. If a Resident Herpetofauna Collection License is suspended or revoked, the Division will notify the applicant in writing and state the reasons for the suspension or revocation.

7. Legacy Possession

- a. A person who lawfully possesses a species listed in **Appendix C**, hog-nosed snake, lesser earless lizard, ornate box turtle, painted turtle, or snapping turtle legally collected on or prior to May 1, 2026, may:
- i. continue to possess and transport the animal within the state for the life of the animal if, by July 30, 2026, the person completes a CPW Legacy Report online on a form provided by the Division; or
 - ii. dispose of the animal as provided in subsection 8 of this rule by July 30, 2026.

8. Disposition

- a. A person may lawfully dispose of a species listed in **Appendix C** only by rehomeing the animal to a person with a valid Resident Herpetofauna Collection and Possession License or an approved facility.

9. Reporting

- a. A Resident Herpetofauna Collection and Possession License holder must report any of the following events online using CPW's Herpetofauna Reporting App within seven days:
 - i. the license holder takes a species listed in **Appendix C** or otherwise acquires a species listed in **Appendix C** that was taken from the wild in Colorado;
 - ii. the license holder rehomes or otherwise transfers a species listed in **Appendix C**;
 - iii. a species listed in **Appendix C** in the license holder's possession dies, escapes captivity, or is lost or stolen.
 - b. The report required by subsection 9.a of this rule shall include the following information:
 - i. the license holder's Customer Identification Number (CID) and license number;
 - ii. the date of the take or acquisition;
 - iii. the species taken or acquired;
 - iv. the location of any take;
 - v. a photo of the animal taken or acquired;
 - vi. any CPW Wildlife Identification Number; and
 - vii. any other information the Division finds will further the purposes of articles 1 to 6 of title 33, C.R.S.
 - c. A Resident Herpetofauna Collection and Possession License holder shall keep a copy of all reports required by subsection 9 of this section for as long as the animal described in the report remains in the license holder's possession and five years thereafter.
- C. Notwithstanding subsections A and B of this rule, an approved facility may possess and transport within Colorado a species listed in **Appendix C** for the purpose of rehoming the species to the holder of a valid Resident Herpetofauna Collection and Possession License.

#705 Herping

A natural person may take and temporarily possess any wild herpetofauna not designated an endangered species or threatened species under the Endangered

Species Act, 16 U.S.C. § 1531, *et seq.*, or Nongame, Endangered, or Threatened Wildlife and Rare Plant Conservation Act, § 33-2-101, C.R.S., *et seq.*, except prairie rattlesnakes (*Crotalus viridis*), midget faded rattlesnakes (*Crotalus oreganus concolor*), or desert massasaugas (*Sistrurus tergeminus*) for the limited purpose of identification or photography, provided the animal is not moved from the location it was taken and is released unharmed within 20 minutes.

#706 Relocation

- A. A natural person may move any wild herpetofauna for the safety of the animal:
1. from a road, trail, or railway to an unconfined, adjacent location without harming the animal; or
 2. from a house, building, or associated structure to an unconfined, adjacent location without harming the animal.
- B. A natural person or the person's agent may take and immediately transport and release unharmed any wild herpetofauna not designated an endangered species or threatened species under the Endangered Species Act, 16 U.S.C. § 1531, *et seq.*, or Nongame, Endangered, or Threatened Wildlife and Rare Plant Conservation Act, § 33-2-101, C.R.S., *et seq.*, if:
1. the animal has caused substantial property damage or poses a substantial threat to the life or health of any person or domestic animal;
 2. the animal is taken on land the person owns or leases;
 3. the animal is released no more than two miles from the location it was captured unless authorized by the Division; and
 4. the animal is released on land the person owns or leases or on land where the person has permission to release the animal.

#707 Other legacy possession

A person who lawfully possesses a Mexican beaded lizard (*Heloderma horridum*) or Gila monster (*Heloderma suspectum*) in Colorado on or before May 1, 2026, may:

- A. continue to possess and transport, but not propagate, the animal within Colorado for the remainder of the animal's life if, by July 30, 2026, the person completes a CPW Legacy Report online on a form provided by the Division;
- B. rehome the animal to an authorized facility; or
- C. export the animal in accordance with the laws of the receiving country, province, or state.

#708 Invasive herpetofauna

- A. The following invasive herpetofauna are detrimental to Colorado wildlife and habitat:
 - 1. Red-eared slider (*Trachemys scripta elegans*)
 - 2. Bullfrogs (*Lithobates catesbeianus*)
- B. A natural person may take an unlimited number of invasive herpetofauna from the wild year-round using the following methods:
 - 1. Any invasive herpetofauna: artificial light and night vision equipment.
 - 2. Red-eared slider: hand or dip net.
 - 3. Bullfrog: hand, dip net, or gig.
- C. Except as provided in Chapter W-1 or regulation #708.C, any invasive herpetofauna taken from the wild must be immediately killed and may not be possessed, transported, or exported alive.
 - 1. A person may possess, transport, or export, but not propagate, a red-eared slider taken from the wild in Colorado for the life of the animal.

APPENDIX A – Species that may be possessed, propagated, sold, offered for sale, purchased, or transported without a license or documentation under #703.A.

- A. Any species of snake native only to the tropical and subtropical region from the following families:
 - 1. Acrochordidae (file and elephant trunk snakes)
 - 2. Aniliidae (pipe snakes)
 - 3. Boidae (giant snakes)
 - 4. Colubridae (modern snakes) except the genera Ahaetulla (vine/whip snakes), Boiga (cat snakes), Dispholidus (boomslangs), Rhabdophis (keelbacks), Thelotornis (twig snakes), or Hydrodynastes
 - 5. Pythonidae (giant snakes)
 - 6. Uropeltidae (shield-tailed snakes)
 - 7. Xenopeltidae (sunbeam snakes)
- B. Any species of lizard native only to the tropical and subtropical region from the following families:

1. Agamidae (chisel-teeth lizards)
 2. Anelytropsidae (snake lizards)
 3. Anguidae (glass and alligator lizards)
 4. Chamaeleonidae (chameleons)
 5. Cordylidae (girdle-tailed lizards)
 6. Corytophanidae (casquehead lizards)
 7. Crotaphytidae (collared and leopard lizards)
 8. Dactyloidae (anoles), except the Brown anole (*Anolis sagrei*)
 9. Dibamidae (blind lizards)
 10. Feyliniidae (African snake skinks)
 11. Iguanidae (iguanas)
 12. Lacertidae (wall lizards)
 13. Lanthanotidae (earless monitor)
 14. Phrynosomatidae (earless, spiny, and horned lizards)
 15. Pygopodidae (snake lizards)
 16. Scincidae (skinks)
 17. Teiidae (whiptail)
 18. Tropiduridae (neotropical ground lizards)
 19. Varanidae (monitor lizard)
 20. Xantusiidae (night lizard)
 21. Xenosauridae (knob-scaled lizards)
- C. Any species of turtle native only to the tropical and subtropical region from the following families:
1. Carettochelyidae (New Guinea softshell turtles)
 2. Dermatemydidae (Central American river turtles)
 3. Kinosternidae (mud and musk turtles)

4. Testudinidae (tortoises)
5. Trionychidae (soft-shelled turtles)
- D. Any species of frog or toad native only to the tropical and subtropical regions from the following families:
 1. Bufonidae (true toads), except the *Rhinella marina* (cane toad)
 2. Centrolenidae (glass frogs)
 3. Dendrobatidae (poison dart frogs)
 4. Hylidae (tree frogs)
 5. Leptodactylidae (tropical frogs)
 6. Microhylidae (narrow-mouthed toads)
 7. Pelobatidae (spadefoot toads)
 8. Pelodytidae (spadefoot toads)
 9. Phrynomeridae (snake-necked frogs)
 10. Pipidae (clawed frogs, Surinam toads)
 11. Pseudidae (Harlequin frogs)
 12. Ranidae (true frogs)
 13. Rhacophoridae (flying frogs)
 14. Rhinophrynidae (cone-nosed toads)
- E. Other Species:
 1. Oriental fire-bellied toad (*Bombina orientalis*)
 2. Any species from the order Gymnophiona (caecilians)
 3. Any species from the order Urodela (salamanders and newts) except tiger salamanders (*Ambystoma tigrinum/mavortium*)
 4. Any species from the suborder Amphisbaenia (worm lizards)
 5. Any species from the subfamily Caimaninae (caimans)

6. Any species from the families Diplodactylidae (eyelash geckos), Eublepharidae (eyelid geckos), or Gekkonidae (geckos) except Mediterranean house geckos (*Hemidactylus turcicus*)

APPENDIX B – Species that may be possessed, sold, offered for sale, purchased, or transported with documentation under #703.B.

- A. Any captive-bred species from the genus *Pantherophis* (cornsnakes, ratsnakes, and foxsnakes) except the Great Plains ratsnake (*Pantherophis emoryi*)
- B. Any captive-bred species from the genus *Lampropeltis* (kingsnakes and milksnakes) except the Western milksnakes (*Lampropeltis gentilis/Lampropeltis triangulum gentilis*) and Speckled kingsnake (*Lampropeltis holbrooki/Lampropeltis getula holbrooki*)
- C. Any captive-bred species from the genus *Heterodon* except the Eastern hog-nosed snake (*Heterodon platirhinos*), *Lystrophis*, or *Leioheterodon* (hognose snakes)

APPENDIX C – Species that may be captured from the wild within Colorado, possessed, and transported within Colorado as provided by a valid Resident Herpetofauna Collection and Possession License under #704.

- A. Plains spadefoot (*Spea bombifrons*)
- B. Woodhouse's toad (*Anaxyrus woodhousii*)
- C. Boreal chorus frog (*Pseudacris maculata*)
- D. Common sagebrush lizard (*Sceloporus graciosus*)
- E. Ornate tree lizard (*Urosaurus ornatus*)
- F. Common side-blotched lizard (*Uta stansburiana*)
- G. Prairie lizard (*Sceloperus consobrinus*)
- H. Plateau fence lizard (*Sceloporus tristichus*)
- I. Gophersnake/Bullsnake (*Pituophis catenifer deserticola/sayi*)
- J. Western tiger salamander (*Ambystoma mavortium*)
- K. Wandering gartersnake (*Thamnophis elegans vagrans*)
- L. Plains gartersnake (*Thamnophis radix*)
- M. Tiger whiptail (*Aspidoscelis tigris*)

N. North American racer (*Coluber constrictor*)

Editor's Notes

History

901 A. 178. eff. 04/30/07.

Entire Rule eff. 07/01/2007.

#903-26 - #903-226, Appendix B-2 eff. 08/01/2007.

#901.A.22, #901.A.111, #901.A.127, #901.A.166 eff. 08/30/2007.

#901.A.128 eff. 10/30/2007.

Emer. Rule Article III-#904 eff. 03/13/2008.

#900-A, #900-B, #901-A eff. 05/01/2008.

Emer. Rule Article IV #904 eff. 06/13/2008.

Entire Rule eff. 7/31/2008.

#901.A eff. 09/01/2008.

#900 D; #902 eff. 03/02/2009.

Chapter 9 recodified as 2 CCR 406-9 on 04/01/2009.

New rule eff. 05/01/2026.